

# THE PUNJAB SENIOR CITIZENS WELFARE ACT 2026

(Act XI of 2026)

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# **<sup>1</sup>THE PUNJAB SENIOR CITIZENS WELFARE ACT 2026**

**(Act XI of 2026)**

[25<sup>th</sup> February 2026]

*An Act to provide for the well-being, comfort and dignity of the senior citizens residing in the Punjab.*

It is necessary to provide for the well-being, comfort and dignity of the senior citizens residing in the Punjab and for the matters connected therewith and ancillary thereto.

It is hereby enacted by Provincial Assembly of the Punjab as follows:

**1. Short title, extent and commencement.**— (1) This Act may be cited as the Punjab Senior Citizens Welfare Act 2026.

- (2) It extends to whole of the Punjab.
- (3) It shall come into force at once.

**2. Definitions.**— In the Act:

- (a) “Act” means the Punjab Senior Citizens Welfare Act 2026;
- (b) “Council” means the Punjab Senior Citizens Welfare Council established under the Act;
- (c) “Fund” means the Punjab Senior Citizens Welfare Fund established under the Act;
- (d) “Government” means Government of the Punjab;
- (e) “indigent” means a senior citizen who is frail, sickly, or with a disability, and without pension or permanent source of income, compensation of financial assistance from his relatives or from any other source to support his basic needs;
- (f) “Member” means a Member of the Council;
- (g) “prescribed” means prescribed by the rules or the regulations made or framed under the Act;
- (h) “regulations” means the regulations framed under the Act;
- (i) “rules” means the rules made under the Act;
- (j) “senior citizen” means an elderly person who has attained seventy years of age or more and is residing in the Punjab;
- (k) “welfare” includes all services relating to social, economic, boarding and lodging needs of the senior citizens, as well as, their legal protection; and
- (l) “welfare packages or grants” means welfare and social security packages or grants announced for welfare of the senior citizens.

**3. Establishment of Council.**— (1) The Government shall, by notification in the official Gazette, establish a Council to be known as the Punjab Senior Citizens Welfare Council.

(2) The Council shall be a body corporate having perpetual succession and common seal and may enter into contracts, acquire, purchase, rent out, hold, transfer or dispose of its moveable and immoveable property, and may by its name sue or be sued.

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<sup>1</sup>This Act was passed by Provincial Assembly of the Punjab on 04 February 2026; assented to by Governor of the Punjab on 25 February 2026; and published in the Punjab Gazette (Extraordinary), dated 25 February 2026 at pages 4523-29.

(3) The head office of the Council shall be at Lahore; however, the Council may establish its sub-offices, on need basis, anywhere in the Punjab.

**4. Composition of the Council.**— (1) The Council shall consist of:

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| (a) | Minister for Social Welfare.                                                                                                                                                   | Chairperson                 |
| (b) | Secretary to the Government, Social Welfare and Bait-ul-Maal Department.                                                                                                       | Vice Chairperson/<br>Member |
| (c) | Secretary to the Government, Specialized Healthcare and Medical Education Department or his nominee not below the rank of an Additional Secretary.                             | Member                      |
| (d) | Secretary to the Government, Primary and Secondary Healthcare Department or his nominee not below the rank of an Additional Secretary.                                         | Member                      |
| (e) | Secretary to the Government, Home Department or his nominee not below the rank of an Additional Secretary.                                                                     | Member                      |
| (f) | Secretary to the Government, Finance Department or his nominee not below the rank of an Additional Secretary.                                                                  | Member                      |
| (g) | Secretary to the Government, Local Government and Community Development Department or his nominee not below the rank of an Additional Secretary.                               | Member                      |
| (h) | Secretary to the Government, Housing, Urban Development and Public Health Engineering Department or his nominee not below the rank of an Additional Secretary.                 | Member                      |
| (i) | Secretary to the Government, Planning and Development Department or his nominee not below the rank of an Additional Secretary.                                                 | Member                      |
| (j) | Chief Executive Officer, Punjab Social Protection Authority.                                                                                                                   | Member                      |
| (k) | three members of Provincial Assembly of the Punjab including one female member of the Assembly.                                                                                | Members                     |
| (l) | four philanthropists, including two women, from amongst the non-governmental organizations and civil societies, to be nominated by Social Welfare and Bait-ul-Maal Department. | Members                     |
| (m) | Director General, Social Welfare and Bait-Ul-Maal Department.                                                                                                                  | Member/Secretary            |

(2) The Council shall have the powers to co-opt a person having expertise in the relevant field for its assistance and advice on the matter under consideration but such co-opted person shall not have any right to vote.

(3) The Members at clause (k) shall be nominated by the Chief Minister and they shall serve during the pleasure of the Chief Minister or during their tenure as members of Provincial Assembly of the Punjab.

(4) The Members at clause (l) shall be nominated for a period of three years which may be extended only once for another term of three years, and they shall serve during the pleasure of the Chief Minister.

(5) A Member at clause (k) or (l) may resign from his office at any time by tendering his resignation, in writing, to the Council.

(6) In case any casual vacancy occurs, it shall be filled in within sixty days of occurrence of such vacancy and the person nominated against such vacancy shall hold office for the un-expired period of the term of his predecessor.

(7) The Chairperson and Members shall serve the Council *pro bono*.

**5. Powers and functions of Council.**— (1) The Council shall exercise such powers and perform such functions, as may be necessary for carrying out the purpose of the Act.

(2) Notwithstanding the generality of subsection (1), the Council shall:

- (a) conduct research and compile data on various aspects of ageing for the well-being of the senior citizens and indigents;
- (b) formulate policy proposals on the senior citizens and indigents in light of national and international commitments on the welfare of the senior citizens and submit these proposals to the Department concerned for approval;
- (c) propose and submit plan of action on ageing for approval by the Department concerned;
- (d) arrange workshops to educate senior citizens about life changes required for a healthy and satisfying old age;
- (e) undertake social, economic and other welfare activities in collaboration with public and private sectors for the welfare of the senior citizens;
- (f) create awareness among the public for the purposes of the Act by organizing seminars, workshops, conferences and use of mass media;
- (g) mobilize for financial resources for welfare and rights of the senior citizens;
- (h) co-ordinate with Government, non-governmental and international social and welfare organizations at national and international level to take steps for the welfare of the senior citizens;
- (i) frame regulations for functioning of the Council including the regulations for appointment of different categories of employees under its administrative control;
- (j) publish reports and other material for guidance and welfare of the senior citizens;
- (k) make efforts for grant of the senior citizens awards in the fields of their expertise;
- (l) establish senior citizens old-age homes to accommodate the homeless, deserted and indigent senior citizens and ensure provision of necessary help;
- (m) find solutions for various matters relating to the senior citizens including but not limited to provision of financial assistance to the indigents;

- (n) coordinate with the concerned Department for provision of free medical treatment, geriatric care and other facilities in Government hospitals to the deserving senior citizens;
- (o) coordinate with the concerned Department for introduction of geriatric as a subject in the medical colleges;
- (p) coordinate with relevant bar councils for provision of free legal aid to the deserving senior citizens depending on the nature of the case;
- (q) promote rights of the senior citizens on social media, print media and electronic media;
- (r) coordinate with concerned Departments for provision of free of charge entry to public museums, libraries, parks to the senior citizens;
- (s) coordinate for:
  - (i) provision of separate counters for the senior citizens;
  - (ii) facilitation in transport;
  - (iii) provision of ramps in public areas;
- (t) coordinate with the organizations working for welfare of the senior citizens;
- (u) prepare plans for raising funds for welfare of the senior citizens;
- (v) promote welfare associations and establish a toll-free helpline for the guidance and assistance, facilitation and grievances handling of the senior citizens; and
- (w) take any other measure that may provide relief and benefit to the senior citizens.

(3) The Council may constitute, from time to time, such number of committees as it may deem necessary, and such committees shall perform such functions and have such powers under the Act as may be assigned to them by the Council.

**6. Meetings of the Council.**— (1) The Council shall meet at least quarterly at such time and place and observe such procedure with regard to transaction of its business and meetings as may be prescribed by the regulations, and until so prescribed as the Council may determine.

(2) The meetings of the Council shall be presided over by the Chairperson or, in his absence, by the Vice Chairperson and in absence of both, by a Member nominated by the Chairperson, if so not possible then by the Member so elected by the Members present.

(3) One-third of the total Members shall constitute the quorum for a meeting of the Council.

(4) The Secretary of the Council, on the direction of the Chairperson or on a requisition moved by not less than one-half of the total Members, shall call a meeting of the Council.

(5) Subject to the quorum, the decisions of the Council shall be taken by majority of the Members present and voting, and in the event of equality of votes, the person presiding over the meeting, shall have a casting vote.

(6) The Secretary of the Council shall maintain a complete record of the minutes of the meeting and the decisions of the Council.

(7) No act, decision, order or proceedings of the Council or a committee constituted by the Council shall be invalid by reason of any vacancy or defect in the constitution of the Council or committee, as the case may be.

**7. Director General.**— (1) The Secretary of the Council shall also be the Director General and administrative head of the Council and shall:

- (a) be the principal accounting officer of the Council;
  - (b) keep in custody the records and seal of the Council;
  - (c) authorize payments of monthly salaries, honoraria and allowances to the employees of the Council;
  - (d) prepare annual budget estimates and supplementary budget estimates of the Council and place the same before the Council for approval;
  - (e) be responsible for the maintenance and development of all ancillary services and procurements;
  - (f) approve payment of bills under any head of the budget of the Council;
  - (g) authenticate orders, decisions or other instruments of the Council by his signature;
  - (h) take steps for the implementation of the decisions of the Council;
  - (i) receive and send all the correspondence of the Council; and
  - (j) execute deeds and documents on behalf of the Council.
- (2) The Director General may, with the approval of the Council, delegate any of his powers to any other officer of the Council.
- (3) The Director General shall be answerable to the Council for administrative, financial and other actions undertaken by him under the Act.
- (4) The Director General shall perform his duties *pro bono* under the Act.

**8. Delegation of powers.**— The Council may, subject to such conditions and limitations as it may determine, delegate any of its powers or functions to its Chairperson, Director General, or a committee constituted by it, except the powers to:

- (a) frame, amend or repeal regulations;
- (b) approve policy decisions, guidelines or procedures for the operation of the Fund;
- (c) determine the terms and conditions of service of the employees of the Council;
- (d) constitute committees;
- (e) approve the annual budget, audited accounts and annual reports of the Council; and
- (f) consider audit reports of the Council.

**9. Appointment of officers and staff of the Council.**— (1) The Council may appoint such officers, employees, experts, advisers, consultants, members of staff and other persons as it considers necessary for the efficient performance of its functions on such terms and conditions and in such manner as the Council may prescribe, and until so prescribed as determined by the Council.

(2) The officers, employees, experts, advisers, consultants, members of staff and other persons appointed by the Council shall not be civil servants within the meaning of the Punjab Civil Servants Act, 1974 (VIII of 1974).

(3) The officers, employees, experts, advisers, consultants, members of staff and other persons appointed by the Council, Chairperson and Members when acting or purporting to act under any of the provisions of the Act or rules made thereunder shall be deemed to be public servants within the meaning of section 21 of the Pakistan Penal Code, 1860 (XLV of 1860).

**10. Appointment by transfer.**— (1) The Government may transfer and post the services of a Government employee of the Social Welfare and Bait-ul-Maal Department to the Council on

such terms and conditions as approved by the Council which shall not be less favourable than those admissible to him immediately before his transfer to the Council.

(2) An employee transferred and posted under subsection (1) shall continue to be an employee of the Government and liable to be transferred back as and when required by the Government.

**11. Fund.**— (1) There shall be a Fund of the Council to be known as the Punjab Senior Citizens Welfare Fund which shall vest in the Council and utilized by the Council for the performance of its functions under the Act in such manner as may be prescribed by the regulations.

(2) The Fund shall consist of:

- (a) funds provided by the Government;
- (b) grants received from the Government;
- (c) grants received from any other authority or agency;
- (d) donations made to the Council by the domestic, provincial or national organization;
- (e) donations made by the international organization subject to approval of the Government;
- (f) all such sums of money as may be determined from time to time by the Government; and
- (g) all other sums received by the Council.

**12. Bank Accounts.**— The Council may open and maintain its bank accounts at such scheduled bank as may be prescribed by the regulations.

**13. Accounts.**— The Council shall maintain proper accounts and other relevant records and prepare annual statement of accounts relating to its financial affairs including its income and expenditure as per requirements of international financial reporting standards in such form and manner as may be prescribed.

**14. Budget.**— (1) The Secretary of the Council shall prepare, in such manner and at such time as may be prescribed, a budget in respect of the financial year next ensuing, showing the estimated receipts and expenditure of the Council and shall submit the same to the Council for approval.

(2) The expenditure which has not been approved in the budget shall not be incurred without prior approval of the Council.

(3) The Council may empower its Secretary to re-appropriate funds from one head to another as may be prescribed.

**15. Audit.**— (1) The accounts of the Council shall be audited by the Auditor-General of Pakistan.

(2) Subject to subsection (1), the Council may cause its accounts to be audited by a registered chartered accountant firm.

(3) Subject to the Act, the auditor shall submit annual or any special audit report to the Council and the Council, shall take corrective measures in light of such audit report, if any.

**16. Annual report.**— (1) The Council shall, within four months of the end of a financial year, submit its annual performance report to Provincial Assembly of the Punjab with approval of the Government.

- (2) The report shall consist of:
- (a) the statement of accounts and audit reports of the Council;
  - (b) all activities, targets achieved, future plans, works done under the Act and proposed activities; and
  - (c) such other facts as may be ancillary to the above.

**17. Powers of the Government to issue directions.**— The Government may, from time to time, issue such directions to the Council as it may deem suitable and the same shall be binding on the Council.

**18. Powers to make rules.**— The Government may, by notification in official Gazette, make rules for carrying out the purposes of the Act.

**19. Powers to frame regulations.**— The Council may, in consultation with Social Welfare and Bait-ul-Maal Department of the Government and by notification in official Gazette, frame regulations for carrying out the purposes of the Act.

**20. Removal of difficulties.**— If any difficulty arises in giving effect to any provision of the Act, Government may make such orders, not inconsistent with the provisions of the Act, as may be necessary to remove such difficulty.

**21. Indemnity.**— No suit or prosecution or other legal proceedings shall lie against any person for anything done or intended to be done, in good faith, under the Act.